NOMAGUGU SITHULISILE JOHNSON

Versus

NATASHA FARAI MASHONGANYIKA

AND

ASSISTANT MASTER OF THE HIGH COURT

AND

REGISTRAR OF DEEDS, COMPANIES AND INTELLECTUAL PROPERTIES

AND

THE SHERIFF OF THE HIGH COURT

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 4 AND 18 NOVEMBER 2025

Opposed Application

T. S Manjengwa, for the applicant
T. Nyapfumbi, for the 1st respondent
No appearance for 2nd to 4th respondents

KABASA J: - This an application for dismissal of an action in terms of r 31 of the High Court Rules, 2021.

The rule provides as follows:-

> "31(1) Where a defendant has filed a plea, he or she may make a court application for the dismissal of the action on the ground that it is frivolous or vexatious and such application shall be supported by affidavit made by the defendant or a person who can swear positively to the facts or averments set out therein, stating that in his or her belief the action is frivolous or vexatious and setting out the grounds for such belief …"

The background to the application is this: - The plaintiff issued out summons against the first defendant seeking the following relief: -

"a. An order confirming the Agreement of Sale between the plaintiff and the late Nkosinothando Biba Ncube aka Nkosi Ncube dated 24th July 2015 in respect of certain piece of land situate in the district of Bulawayo being the remaining extent of Stand 6 Bulawayo Township in extent 694 square meters more commonly known as No. 41A Fort Street, Bulawayo.

b. An order compelling the 1st defendant to prepare and submit to the 2nd defendant the first and final liquidation and distribution account awarding the above mentioned property to the plaintiff.

c. An order compelling the 2nd defendant to confirm the first and final liquidation and distribution account to be submitted by the 1st defendant in terms of the above order.

d. An order compelling the 1st defendant to prepare all necessary papers and submit them to the 3rd defendant for the transfer of the property into the plaintiff's name within seven (7) days of granting of the order.

e. An order compelling the 3rd defendant to facilitate and register certain piece of land situate in the district of Bulawayo being the remaining extent of Stand 6 Bulawayo Township in extent 694 square meters more commonly known as No. 41 A Fort Street Bulawayo to the plaintiff's name.

f. In the event that 1st defendant fails to comply with this order, the 4th defendant be authorised to sign all necessary papers in 1st defendant's stead.

g. An order compelling the 1st defendant to pay from the estate a total amount of US$42 840 being half share of rental money collected from the property from 1st January 2017 to date of issuance of summons.

h. An order for costs."

The plaintiff's claim, as elaborated in the declaration is premised on the averment that in May 2015 the plaintiff bought the said property from the late Ncube for US$55 000. A due diligence exercise by a law firm practicing as Morris Davies & Company confirmed that Ncube was the owner of the property. The plaintiff subsequently gave her mother a Special Power of Attorney to represent her in that transaction. The total amount was subsequently paid through three individuals acting on plaintiff's behalf. The parties, that is the plaintiff and Ncube, agreed

to share equally the rentals from that property as well as the expenses attendant with the maintenance of the property from 1 August 2015 until the date of transfer.

The late Ncube breached the contract as he failed to pass transfer of the property to the plaintiff and the full share of the rentals plaintiff was entitled to. Ncube died before such transfer and the 1st defendant was appointed the executrix dative.

It is this claim that is sought to be dismissed for being frivolous or vexatious. In her founding affidavit the first defendant avers that the plaintiff failed to plead a valid contract, the performance of such contract by her and that the 1st defendant was therefore now due to perform their part of the contractual obligations. The property was not owned by Ncube as at the time the contract of sale was concluded, the agreement specified on how payments were to be effected which the plaintiff did not comply with. The plaintiff did not show that the agreed purchase price was paid in full. She equally did not lodge her claim against the estate and the period to lay such claim has expired. The claim was however still adjudicated on and rejected. A section 120 Authority(per the Administration of Estates Act [chapter 6:01] to sell was sought and granted and the property was sold. The plaintiff's claim would have been ripe as at 1st September 2016, the alleged date when full payment was effected and yet summons was issued in February 2024. The claim has therefore prescribed.

It is on the basis of the foregoing that the 1st defendant seeks the dismissal of the claim as frivolous.

The application was opposed. The opposing affidavit was deposed to by the plaintiff's legal practitioner. Counsel stated that the affidavit was being deposed to by him largely because the determination of the matter involved legal issues and he is therefore able to articulate the legal issues. Counsel then went at length stating the facts as reflected in the declaration, which facts he states he has personal knowledge of due to the fact that he has represented the plaintiff in this matter and also in HCBC 585/24. He was authorised to depose to the opposing affidavit by the plaintiff.

A point *in limine* was taken by counsel for the 1st defendant, the import of which is that there is no valid opposition as the opposing affidavit was deposed to by the plaintiff's legal practitioner who cannot swear positively to the facts.

This judgment is concerned with that point *in limine*. I decided to hear the parties on the point *in limine* only for the simple reason that, in the event that such point *in limine* is upheld, the 1st respondent's legal practitioner would not address the court on the merits. To therefore hear the parties on both the point *in limine* and the merits would have the unintended result that in the event of the upholding of the point *in limine*, the matter would have been dealt with as an opposed matter.

Applicant's Submissions

Mr Manjengwa for the applicant submitted that there was no compliance with r 58 (4) of the High Court Rules, 2021, which rule provides that:-

"An affidavit filed with a written application –

(a) Shall be made by the applicant or respondent, as the case may be, or by a person who can swear to the facts or averments set out therein…" The 1st respondent's legal practitioner could not swear positively to the facts and the averments he made were hearsay in nature. Counsel relied on *Zinyemba* v *Makamba & 2 Others* HH 108-24 and *Hiltunen* v *Hiltunen* 2008 (2) ZLR 296 (H) for the proposition that the deponent to the opposing affidavit provided no basis for the factual averments and such factual averments are not on procedural issues but facts which are a narrative of what must be instructions given to him by the 1st respondent in his capacity as her legal practitioner. The deponent therefore has no personal knowledge of these factual averments. A legal practitioner can only depose to an affidavit on behalf of a client in exceptional circumstances and must demonstrate positive knowledge. The events the deponent attested to were events which occurred before he got instructions to represent the 1st respondent as litigation commenced after the occurrence of these events.

The application is not merely procedural but substantive and therefore requires one with knowledge to assert why the summons has potential to sustain the claim. There is no explanation as to why the 1st respondent could not depose to the opposing affidavit. The averments as regards the payment of money by people other than the 1st respondent is not something personally known to the 1st respondent and so in regurgitating such averments the deponent was relaying secondary hearsay. The deponent does not say how he got the

information and so the opposing affidavit is no opposing affidavit and the matter must therefore proceed as unopposed, so went counsel's argument.

1st Respondent's Submissions

Mr Nyapfumbi for the 1st respondent held a different view. Counsel contended that there was valid opposing papers as the application is coming after issuance of summons. It is therefore interlocutory.

The legal practitioner was favoured with instructions, drafted the summons and was appraised of the facts. The issue is whether the legal practitioner cannot testify to the effect that the summons/claim is not frivolous or vexatious. The issue is not only located in the facts but the frivolity or vexatiousness of the claim.

Rule 31 states that anyone who has knowledge of the facts and the legal practitioner has such knowledge. A legal practitioner can depose to an affidavit on behalf of a client in exceptional circumstances and in this case the summons already relates the facts.

Counsel relied on *Mandaza* v *Mzilikazi Investments (Pvt) Ltd* 2007 (1) ZLR 77 (H) for the proposition that a legal practitioner can depose to an affidavit if he can swear positively to the facts of the main matter.

Analysis of Arguments

An affidavit is a sworn statement and therefore contains evidence. It follows therefore that one who deposes to an affidavit must be either the party who has personal knowledge of the facts or a person who is authorised by the party and can swear positively to the facts.

Ordinarily a legal practitioner works on instructions from a client. He or she cannot possibly claim to swear to such as he only goes by what the client chooses to tell him/her.

In *Hiltunen* v *Hiltunen* 2008 (2) ZLR 296 (H) the applicant deposed to an affidavit stating facts which were not within her personal knowledge. She did not indicate the source of the information. The court was not able to isolate any facts that the deponent, as the agent of the applicant would have had personal knowledge of. The affidavit was therefore based on belief. The court made the observation that generally affidavits must be confined to such facts as the witness is able of his own knowledge to prove. In interlocutory or urgent applications hearsay evidence is received if there is an acceptable explanation why direct evidence is not

available and the source of the information and the grounds for the belief in the truth of the statement is disclosed.

In *Mandaza* v *Mzilikazi Investments (Pvt) Ltd* (supra) the court had this to say:-

> "Generally I agree with Mr Ndove, that a legal practitioner should not depose to a founding affidavit on behalf of a client. This court has previously stated why it is undesirable for legal practitioners to do so. But there is an exception to this general rule if the facts are within the knowledge of a legal practitioner (he may swear an affidavit on behalf of the client) – *Samkange & Anor* v *The Master & Anor* HH 63-93. Even in such exceptional cases, the route should be, in my view, be sparingly resorted to. The facts of this application are within the knowledge of the applicant's legal practitioner. He is in fact, in better position to highlight the applicant's case as the application is about procedural matters. In the circumstances the legal practitioner was justified in deposing to the affidavit."

Turning to the facts *in casu*, this is not a matter on procedural issues only. Granted the issue of whether the claim is frivolous or vexatious is one better addressed by one with legal knowledge but such legal knowledge is not applied in a vacuum. The law is applied to the facts and it is those facts that must be sworn to by one who can positively swear to them.

For instance in an application for rescission of judgment where such judgment was entered in circumstances which a legal practitioner has personal knowledge of as regards the non-appearance of the litigant against whom judgment is entered. Where such was occasioned by, for example, the misdiarisation of the dates by the legal practitioner or his/her delay in getting to court, such facts are within that legal practitioner's knowledge and so he/she can positively swear to the facts.

In casu, the legal practitioner cannot possibly swear positively to the facts of the matter. Granted, a summons cannot possibly contain evidence but where as in this application, reference is made to the facts, which facts are said not to sustain an action, the one who can positively swear to such facts must depose to the affidavit.

There is mention of other people having paid the monies to the late Ncube and the 1st respondent could only relay that which she too was told by those other people. This therefore cannot qualify as first hand hearsay.

The deponent to the opposing affidavit stated that he was authorised to depose to the affidavit. Why was the 1st respondent not able to depose to the opposing affidavit and mention that which she could only have been told by her mother who is said to have acted on the basis

of a special Power of Attorney and equally the other 2 persons who are said to have paid part of the monies to the late Ncube. It can therefore not be first hand hearsay that the deponent to the opposing affidavit was swearing to. It is also important to observe that the deponent does not say the source of the information he deposed to. Was it the 1st respondent, if so, she could only have relayed what her mother who was the one who transacted told her. Equally on the payment of the full purchase price, it was not the 1st respondent who paid but some other people.

In *Baron* v *Baron & Ors* HB 92-21, the applicant's founding affidavit was deposed to by his legal practitioner. The court had this to say:-

> "The deponent deposed to facts that are not within her personal knowledge, did not indicate the source of her information, save for the statement that she is a legal practitioner for the applicant. She does not say from whom she verified the facts not within her knowledge."

In casu the deponent said he is authorised to depose to the affidavit and that he represented the 1st respondent in some other matter. Does this suffice for him, as a legal practitioner, to swear positively to facts he has no personal knowledge of, especially in the particular circumstances of this case? I think not.

I therefore hold the view that this does not qualify as the exceptional circumstances under which a legal practitioner can depose to an affidavit on behalf of a client. The hearsay evidence he deposes to does not find protection in s27 of the Civil Evidence Act [Chapter 8:01]. It cannot be regarded as first hand hearsay.

I therefore do not find how the opposing affidavit can be saved.

I am therefore persuaded by counsel for the applicant's argument. The legal practitioner should not have deposed to an affidavit on behalf of the 1st respondent.

That said the point *in limine* is upheld. The effect therefore is that there is no valid opposition to the application.

This however does not mark the end of the matter. An application is not granted merely because it is unopposed. The applicant must make a case for the relief sought for the court to grant the application. Due to the reasons afore-stated, I could not ask the applicant's counsel to address on the merits without first deciding the point *in limine*.

The upholding of the point *in limine* is therefore not dispositive of the matter.

In the result I make the following order:-

1. The point *in limine* be and is hereby upheld. There is therefore no valid opposition to the application.
2. The matter shall be set down to allow the applicant to motivate the application on the merits.
3. Costs shall be in the cause.

Wintertons Legal Practitioners, applicant's legal practitioners

Task Vhiki Attorneys, 1st respondent's legal practitioners